

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2023CUOE015868: AGUIRRE VS THE CHEESECAKE FACTORY

09/15/2026 in Department 44

**Motion to Compel THE DEPOSITION OF PERSON MOST KNOWLEDGEABLE AND
REQUEST FOR IMPOSITION OF SANCTIONS**

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at <https://www2.ventura.courts.ca.gov/Courtroom/C44>.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 3:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

<https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuoQs-9TQXgEQ>

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties. Use the subject line "SUBMISSION ON TENTATIVE", [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Notice of Ruling. Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d) and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Plaintiff Manuel Aguirre's Motion to Compel Deposition of Defendant The Cheesecake Factory Restaurants, Inc.'s Person Most Knowledgeable and Request for Imposition of Sanctions Against Defendant and Its Counsel for \$5,131.00

Tentative Ruling:

Plaintiff Manuel Aguirre's Motion to Compel Deposition of Defendant The Cheesecake Factory Restaurants, Inc.'s Person Most Knowledgeable and Request for Imposition of Sanctions Against Defendant and Its Counsel for \$5,131.00, is GRANTED in part; the deposition is ordered to go forward on or before October 15, 2026, and reasonable monetary sanctions are awarded in the reduced reasonable amount of \$4,260.

Plaintiff's counsel has shown that he has engaged in sufficient meet and confer efforts, or in the alternative, that additional meet and confer efforts would be futile. Plaintiff is entitled to depose Defendant's PMK pursuant to Code of Civil Procedure sections 2025.230 and 2025.450, and the governing CMO in this case concerning matters of class certification whereby the stay on discovery was lifted effective January 26, 2026. The timeline of events shows that Plaintiff noticed the PMK deposition and took the deposition off calendar on Defendant's representation that defense counsel was temporarily unavailable. Thereafter, defense counsel refused to put the deposition back on calendar. The Court also incorporates, without restating here, the procedural history set forth in the Court's denial of Plaintiff's ex parte application, which the Court denied via an amended minute order on September 9, 2026.

Defendant must produce the PMK witness for deposition within 30 days, on or before October 15, 2026.

Additionally, the Court finds that Defendant acted without substantial justification in not producing the PMK witness and in necessitating this motion. Accordingly, sanctions are warranted. Plaintiff's counsel declares he spent 7.1 hours drafting the motion exclusive of the time needed to review Defendant's opposition, draft a reply and attend the hearing. Plaintiff's counsel claims an hourly rate of \$733. While the Court finds the hours claimed to be reasonable, the Court does not find that the hourly rate is reasonable for the Ventura County legal community. According to information on the State Bar website, of which this Court takes judicial notice, Mr. Seyedfarshi is an attorney with 12 years of experience. A reasonable hourly rate for an attorney of comparable experience in the Ventura County legal community is \$600 per hour. Accordingly, the Court awards sanctions jointly against defense counsel, Joanna MacMillan, Esq., Steven Katz, Esq., Regina Musolino, Esq., David Orozco, Esq., Aaron Carpenter, Esq., and Kim Talley, Esq., in the amount of \$4,260 payable to Plaintiff's counsel on or before October 15, 2026.

Plaintiff's counsel to give notice.